

## **Instructions for Implementing the South Dakota Parenting Time Guidelines**

The Term "Visitation" was changed to "Parenting Time" by the South Dakota Legislature. "Parenting Time" means the time a parent spends with a child regardless of the custodial designation regarding the child.

READ THESE INSTRUCTIONS AND REVIEW THE FORMS BEFORE BEGINNING

### **IMPORTANT NOTICES**

1. The Court expects every person who appears in court without an attorney to know and follow the law. The Judge will not be able to give you any help in court.
2. Court employees **cannot** help you fill out forms or give you legal advice. If you have questions, please **consult an attorney**.
3. *This Petition cannot start a civil case. If you do not have an existing Order, you will need to start a new civil file in which you are the Plaintiff. You will also need to complete and file a Civil Case Filing Statement (Form UJS-232). **If you need assistance beginning a new civil file, you may want to consider consulting a lawyer.***

### **PETITION Instructions for Implementing South Dakota Parenting Time Guidelines**

**REQUIREMENTS OF THE LAW TO IMPLEMENT STANDARD VISITATION:** You can also refer to [SDCL 25-4A-16.1](#). But the following must be true:

1. If you have a visitation, support, or custody order from a court in South Dakota; and
2. You would like the South Dakota Parenting Time Guidelines included into your court Order.

**IF THIS APPLIES, YOU MAY THE FOLLOW THESE INSTRUCTIONS TO FILE A PETITION AND ASK THE COURT TO INCLUDE THE GUIDELINES IN YOUR CURRENT COURT ORDER:**

1. When completing each form, The information to fill in the top part of the forms (called the Caption) can be found at the top of your current support or custody Order. Be sure to copy the information **exactly** as it appears on your current custody or visitation Order.
2. Complete the Petition for Order Implementing South Dakota Parenting Time Guidelines (Form UJS366)

3. Complete the Notice of Petition for Parenting Time Guidelines (Form UJS-367).
4. File the Petition and the Notice of Petition with the Clerk of Court **in the county where your current child support, custody, visitation, or spousal support Order is filed**, making sure the case number of the record with the current Order is provided on both documents.

**Note:** There is **no filing fee** for this particular court action.

5. For a small copy fee, the Clerk of Court can make copies of all paperwork for your file and for you to serve on the other party.
6. You must serve the Petition and Notice of Petition on the other party. This means you must give all the documents to the other party and **must** provide proof to the Court that you provided all the documents to the other party.
7. The Petition and Notice of Petition can be served on the other party in two ways:

**Option 1 - Mail a file stamped copy of the Petition and Notice of Petition** with attachments and the Admission of Service (Form UJS-368) to the other party. The other party is not required to sign the Admission of Service but may choose to sign the admission and mail it back to you. If the other party signs and returns the Admission of Service, they are considered served and you must file the signed admission of service with the clerk of court.

**Or**

**Option 2 - Service by Sheriff or process server** - If you do not think the other party will sign the Admission of Service, or if the other party refuses to sign the Admission, you may provide your paper work to a process server or the local sheriff's office and pay to have the other party served by them. The process server/sheriff's office will provide Proof of Service for the Court which you will need to file with the Clerk of Court once they provide to you.

8. Because this proceeding involves issues of parenting time, **within sixty days of the service of the Petition**, you must complete a Court-approved parenting course per [SDCL 25-4A-32](#). This requirement is met if you and the other party to this case have completed a Court-approved course within the last five years. The Judge can also waive the requirement, but only for good cause shown. You must file an Affidavit on Court-Approved Parenting Course (UJS-364) with the Clerk to either provide proof of meeting the requirement or to seek waiver of the requirement. **If you seek a waiver, file the Affidavit well in advance of the deadline.**

9. **Failure to file** any of these documents with the Clerk of Court may result in the dismissal of your case.
10. If the other party does not object within the allowed time from the date of service, you must submit the Order Implementing South Dakota Parenting Time Guidelines (Form UJS-370) to the Clerk of Court. Based upon the information within the Petition and the prior support/custody Court Order, the Judge may order the standard guidelines to be implemented and will mail both parties a copy of the signed Order.
11. If, within 10 days of Service, the other party **does** object to the Court ordering the standard guidelines the Court will order a hearing and both parties will be sent a Notice of Hearing, which will include the hearing date set by the Court.
12. Once the Objection is filed with the Court, the Clerk of Court will schedule a hearing and send all parties a copy of the Notice of Hearing. You must go to court on the date set for the hearing. Be sure to be on time. Bring copies of your documents with you to the hearing. **Do not** bring child(ren) to the hearing. Take any proof you have or witnesses who can verify your claims and explain why the standard guidelines should be implemented in part or whole to the hearing with you. The hearing is very formal. You should be polite to everyone in the courtroom and address the Judge as "your honor." Remember to talk to the Judge, not the opposing party. Do not argue with the other party. The Judge may issue the Order at the end of the hearing or may send a copy of the Order to you in the mail.